



# INDIAN POLITY



## ELECTION COMMISSION

- SIMULTANEOUS ELECTIONS
- ISSUE OF PROXY VOTING



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MODULE – 96

## PRIME MINISTER'S OPINION ON SIMULTANEOUS ELECTIONS

- 1 The Prime Minister highlighted that the country is in the **constant election mode**. One election finishes and the second starts.



- 2 Having simultaneous Parliament, Assembly, civic and Panchayat polls once every five years and completed within a month would save **money, resources and manpower**.
- 3 At present, large sections of the security forces, bureaucracy, political machinery are being mobilised for up to 200-days a year on account of electioneering.
- 4 It results in efficient utilisation of Government resources and security forces. It facilitates **effective policy planning**.

# SIMULTANEOUS POLLS

## FACTUAL INFORMATION

- 1 Having simultaneous polls for the State Assemblies and Lok Sabha is not a new phenomenon.
- 2 In fact, during 1951, 1957, 1962 and 1967 general elections, the State Assembly elections (for most of the States) were also held along with general elections.
- 3 Hence, simultaneous polls started initially after independence.
- 4 The practice got disturbed due to the dissolution of State Assemblies in some states, and also due to the early elections called in 1971 to the Lok Sabha.
- 5 Subsequently, things further vitiated as the next Lok Sabha elections were delayed by one year to 1977 and subsequent Lok Sabha elections came within three years due to the fall of the Janata Party Government.





*Simultaneous Elections were not Constitutionally mandated. Hence, the Simultaneous Elections during the first two decades is a function of historical coincidence and initial political stability.*

# SIMULTANEOUS POLLS

## FACTUAL INFORMATION



- 6 The situation in State Assemblies further vitiated as the Janata Party Government in 1977 and the Congress Party Government in 1980 **resorted to the dissolution of State Assemblies ruled by other parties.**
- 7 From 1980s onwards, only few States are going to the polls along with Lok Sabha elections and the Assembly elections in majority of the states are spread across various intermittent years.
- 8 Now the reality is that majority of the Indian voters have the option to elect the Central Government as well as State Governments **independently with tenures starting with different dates.**



## PRESENT ELECTIONEERING PROCESS ... SERIOUS DRAWBACKS



### 1. HEAVY EXPENDITURE

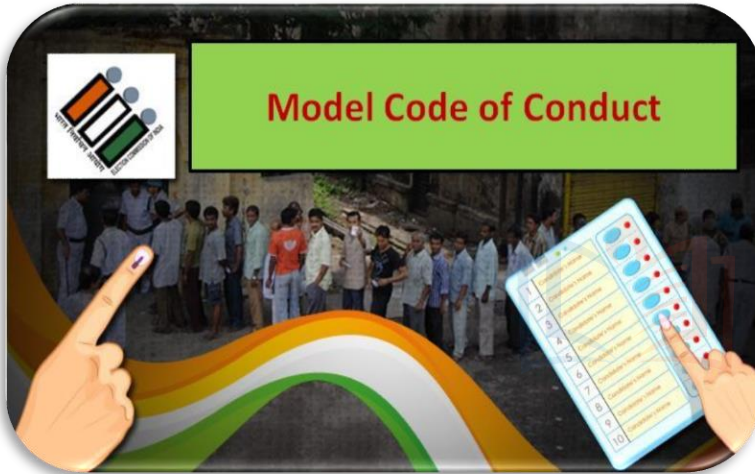


- The 2019 general election was the most expensive on record.
- Around Rs. 60,000 Cr was reportedly spent on the whole exercise.

*There is a hope that simultaneous elections would reduce this cost.*

## PRESENT ELECTIONEERING PROCESS ... SERIOUS DRAWBACKS

## 2. AFFECTS GOVERNMENT FUNCTIONING



- Frequent elections hamper the normal functioning of the Government.
- This happens because of **Model Code of Conduct**, which comes into force as soon as Election Commission announces the election date.
- The Governments cannot announce any new schemes. This results in **policy paralysis**.
- Government **cannot make any new appointments** or transfer or appoint officials.
- Entire Government machinery is involved in the conduct of elections.

## PRESENT ELECTIONEERING PROCESS ... SERIOUS DRAWBACKS

## 3. INCREASING HATE SPEECHES IN RECENT TIMES



- Communalism, Casteism, Corruption rise their heads during the elections.
- Frequent elections means these evils rise their heads quite frequently.
- The same was on full display during the 2019 general election.

*From the point of view of Election Commission, simultaneous elections make perfect sense, because the voters for all three tiers are the same, polling booths are the same, staff/security is the same and “One Nation, One Election” seems logical.*





## PREVIOUS DELIBERATIONS ON SIMULTANEOUS ELECTIONS

- 1** A Law Commission Report (170<sup>th</sup>) recommended Simultaneous Elections to Lok Sabha and State Legislative Assemblies in 1999.
- 2** A Report of the Parliamentary Standing Committee in 2015 examined the feasibility and suggested an alternative and practicable method of holding Simultaneous Elections.
- 3** In 2017, a NITI Aayog discussion paper by Bibek Debroy and Kishore Desai examined the idea, supporting the Parliamentary Committee's two-phased Approach as the most feasible solution.

# ELECTION COMMISSION OF INDIA

## FOR SIMULTANEOUS ELECTIONS



- 1 It will ensure **consistency, continuity** and governance.
- 2 Election Commission's **Model Code of Conduct** **disrupts** development works / announcements. This disruption can be reduced.
- 3 It results in savings for the Government as well as political parties. It avoids **prolonged lock in of State Security Forces**.
- 4 In our country, elections are in fact **polarising on the religious lines**. So if we have fewer such instances, it would be better.

- 5 If we are preoccupied with Local Body Elections, Assembly Elections, Lok Sabha Elections, **where is the time for developmental work?** Complete five years should be given to focus on Governance.
- 6 It **curbs corruption** and builds more conducive Socio-Economic ecosystem.
- 7 Frequent electoral cycles disrupt the normal public life by impacting the **delivery of essential services**.
- 8 Even **teachers** are being engaged for **election duty** frequently, **affecting studies** of the students.

# ELECTION COMMISSION OF INDIA

## AGAINST SIMULTANEOUS ELECTIONS



**1** Politicians remain mindful of electorate's needs, because of frequent polls. Otherwise they will forget for overall four years and they will wake up only during the last year.

**2** Frequent Elections in fact, puts the elected members on the tenterhooks.

**3** Nationwide operations could become a logistical nightmare.

**4** It goes against the Spirit of Constitution and the Spirit of Federalism.

**5** National issues may eclipse State concerns in the minds of the voter and indirectly hurt regional parties.

**6** Conversely, local issues could have a bearing on voting behaviour for Lok Sabha.



**YSR Congress Party**



**Biju Janata Dal Party**



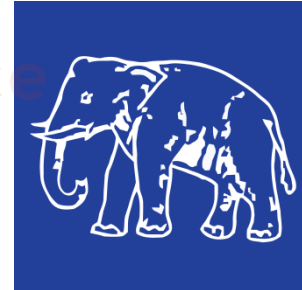
**Rashtriya Janata Dal  
Party**



**Trinamool Congress  
Party**



**Samajwadi Party**



**Bahujan Samaj Party**



**DMK Party**



**AIADMK Party**



**Telugu Desam Party**



**TRS Party**



# ELECTION COMMISSION OF INDIA

## AGAINST SIMULTANEOUS ELECTIONS



- 7 Since 1989, **coalition politics** have brought stability and vibrancy to the democracy and **ensured an active role for State parties** and greater power sharing among the parties.
- 8 We are following **a lengthy schedule** and it is necessitated by the **logistics requirement** of movement of requisite security forces and this constraint would remain, even if Simultaneous Elections are held.
- 9 The Fundamental instrument of the **no-confidence motion** would be effectively taken away.

# SIMULTANEOUS POLLS

## POINTS TO PONDER / UNANSWERED QUESTIONS



1

What will happen, if the **State Assembly is dissolved midway** and what action plan is required to be taken in the interim period?

2

When the government loses its majority because of **no confidence motion**, then what will happen to the rest of the time period?

3

Several **regional parties** came into focus during the past 20 to 30 years and their main aspirations are **regional development**. This is different from the national perspective of the National Parties. If simultaneous elections are held, it is a moot question, **whether the illiterate voter is able to decide about the parties which can fulfil his aspirations at the national level / state level separately**. Hence, if at all simultaneous elections are held, elections to State Assemblies and Lok Sabha should be held with a gap of at least 15 days to 20 days.

# SIMULTANEOUS POLLS

## POINTS TO PONDER / UNANSWERED QUESTIONS



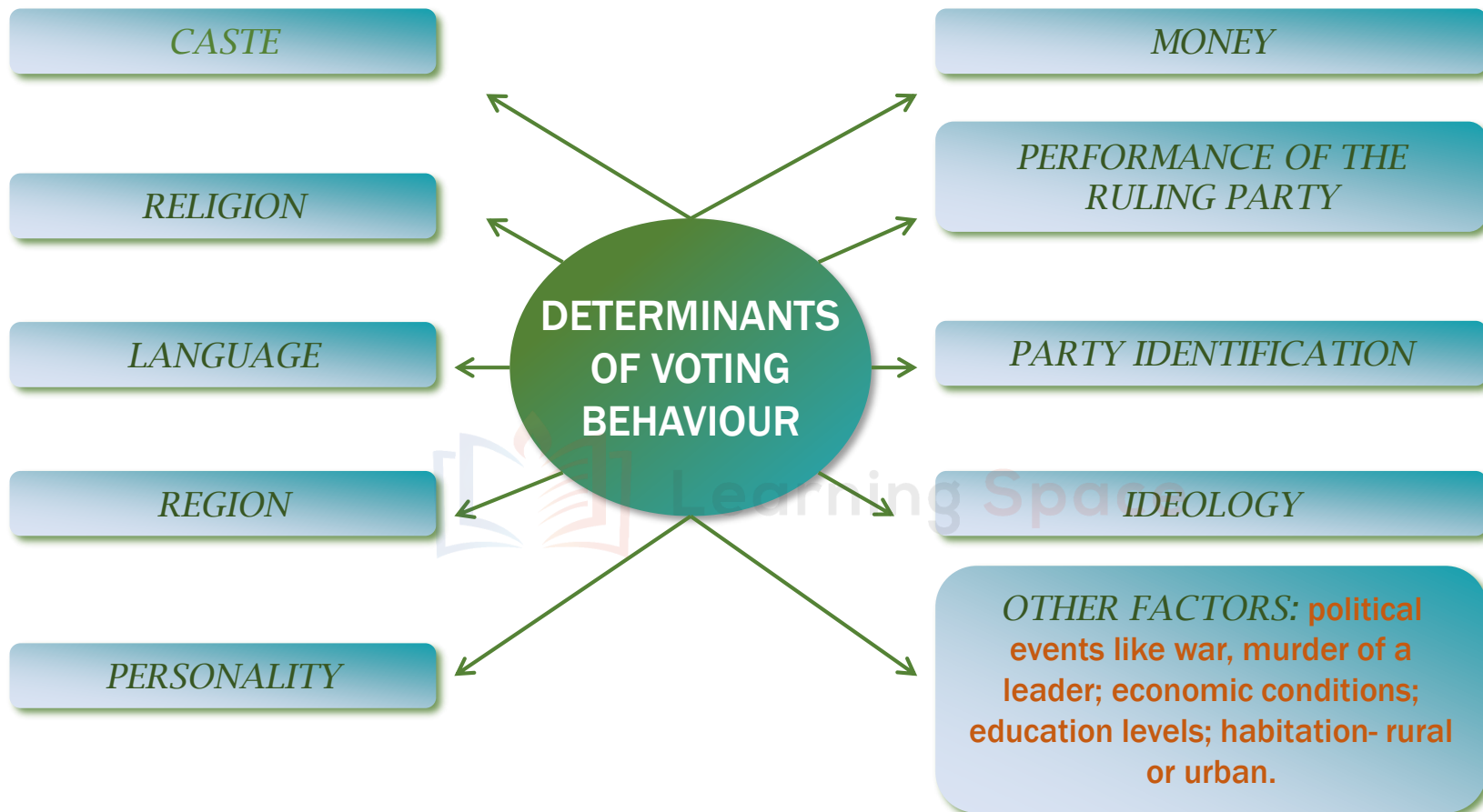
- 4 Does it not affect the **Federal structure of the Constitution**, where the Constitution gives independent powers to the States and the Indian Union?
- 5 As no elections are due in the intervening period, some of the **elected representatives may not show much interest** during the first 3-4 years. In the present system, one or the other elections are due in between, such as local bodies, societies etc., hence, the responsibility of solving the problems is felt directly by the elected representatives.
- 6 Frequent elections are acting as **checks and balances** on the functioning of elected representatives, and this mechanism will be lost with simultaneous polls.

## MIDDLE VIEW



- 1 The way out is to cut the role played by the money in elections and this can come about only **through a ceiling on political party expenditure**. The other aspect is the **State funding of elections**.
- 2 National and Local issues are different and holding Simultaneous elections is likely to **blur** the Judgement.
- 3 Simultaneous Elections would be most **convenient** for the Election Commission. There is an apprehension that, whenever there is a majoritarian Government at the Centre, any anti-incumbency in the States is likely to get neutralised, if Simultaneous Elections are held.

**All these factors are to be thought through, before a consensus is worked out.**



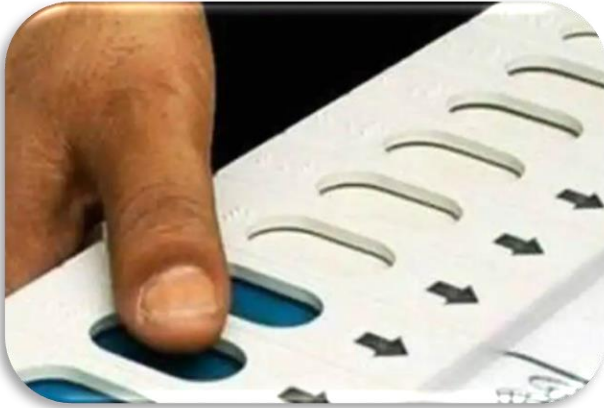


## PROXY VOTING IN INDIA

## PLAN TO GIVE PROXY VOTING TO OVERSEAS INDIANS IS WITHHELD



- The Government has withheld its plan to introduce a fresh bill in Parliament to extend the facility of proxy voting to overseas Indians, pending reconciliation of various views on the issue.
- The proposal will move further after various views are reconciled.
- There are demands from various parties to extend **similar facilities to domestic migrants**, who are unable to vote, when elections are held in their native places.
- Voting in elections can be done in three ways, i.e.,
  - In person
  - By post
  - Through a proxy



## WHAT IS THE PROPOSAL AS PER THE BILL?

- The Bill proposes that Overseas Indians, who are entitled to vote in India could appoint proxy voter to cast their vote.
- As of now, Overseas Indians were free to cast their votes in their constituencies, where they were registered.
- The bill seeks to give them the option of proxy voting.
- Till now, proxy voting option is available to the “service personnel”.

## ELIGIBILITY FOR “SERVICE VOTERS”

- 1) Members of Indian Army, Navy and Air Force and Personnel of Border Road Organization, Border Security Force, Indo Tibetan Border Police, Assam Rifles, National Security Guards, Central Reserve Police Force, Central Industrial Security Force and Sashastra Seema Bal.
- 2) Members of Armed Police Force of a State, who are serving outside that State.
- 3) Persons, who are employed by Government of India in a post outside India.

## WHAT DO YOU UNDERSTAND BY “CLASSIFIED SERVICE VOTER”?

- 1) Service voter belonging to Armed Forces or forces to which provisions of Army Act, 1950 are applicable, has option of either voting through **postal ballot or through a proxy voter** duly appointed by him.
- 2) A service voter, who opts for voting through a **proxy** is called **Classified Service Voter (CSV)**.

*Under proxy voting, a “Classified Service Voter” can delegate his voting power to a representative.*



## WHO CAN BE A PROXY?

- A service voter may **appoint any person as his / her proxy** to give vote on his / her behalf and in his / her name at the polling station.
- The proxy shall **have to be ordinary resident of that constituency**.
- He need not be a registered voter but he / she must not be disqualified to be registered as a voter.

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